

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201708104	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Friday, 09/15/2017 12:00 AM, Saturday, 09/16/2017 11:00 AM	Location of Incident: 113th Precinct stationhouse; in transit from § 87(2)(b); Queens Central Booking	18 Mo. SOL 3/16/2019	Precinct: 113
Date/Time CV Reported Mon, 10/02/2017 10:26 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 10/02/2017 10:26 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			113 PCT
2. POM William Schroder	26324	955463	113 PCT
3. Officers			QNS CT
4. An officer			QNS CT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Procida	12633	961124	113 PCT
2. POM Stephen Keyes	01260	961856	113 PCT
3. SGT Diego Dejesus	4128	943134	113 PCT
4. POM Angel Rolon	05022	931946	113 PCT
5. POM Steven O'Brien	07928	950968	113 PCT
6. POF Summer Powell	24092	941111	QNS CT
7. POM Makinston Courtois	20124	940027	QNS CT
8. POM Paul Pinsdorf	06234	925926	QNS CT
9. POM Michael DeMarco	19007	917521	QNS CT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Off. Language: At the 113th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon his perceived sexual orientation.	A . Officer(s) Unidentified
B . An officer	Force: At the 113th Precinct stationhouse, an officer used physical force against § 87(2)(b)	B . Unfounded
C . POM William Schroder	Discourtesy: In transit from § 87(2)(b), Police Officer William Schroder spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . Officers	Force: At Queens Central Booking, officers used physical force against § 87(2)(b)	D . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
E . An officer	Force: At Queens Central Booking, an officer used a chokehold against § 87(2)(b)	E . Officer(s) Unidentified
F . An officer	Force: At Queens Central Booking, an officer restricted § 87(2)(b)'s breathing.	F . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 2, 2017, § 87(2)(b) filed this complaint with the CCRB in-person.

At approximately 8:30 p.m. on September 15, 2017, § 87(2)(b) was arrested by officers from the 113th Precinct in regards to an open § 87(2)(b) complaint. § 87(2)(b) was taken into custody and held overnight at the 113th Precinct stationhouse. At approximately 11:00 a.m. on September 16, 2017, § 87(2)(b) got into an argument with two unidentified prisoners who were also being held at the stationhouse. The prisoners later spoke to an unidentified officer, telling him that they would be willing to beat § 87(2)(b) up if the officer gave them cigarettes in exchange. The officer allegedly replied, “If you hit this faggot, you know you’re going to go to jail” (**Allegation A – Offensive Language: Sexual Orientation, officer unidentified**). A short time later, this same officer allegedly removed § 87(2)(b) from his holding cell in order to escort him to a different part of the stationhouse. While doing so, the officer allegedly pushed § 87(2)(b) against the bars of the holding cell. (**Allegation B – Force: Physical force, unfounded**).

§ 87(2)(b) was later removed from his holding cell and transported by ambulance to § 87(2)(b). PO Stephen Keyes escorted § 87(2)(b) to the hospital, but was relieved there by PO Michael Procida. At approximately 7:00 p.m., PO William Schroder and PO Steven O’Brien transported § 87(2)(b) and PO Procida from the hospital back to the stationhouse. While en route, PO Schroder allegedly made sexually explicit remarks while in § 87(2)(b)’s presence (**Allegation C – Discourtesy: Word, unsubstantiated**). Back at the stationhouse, it was discovered that § 87(2)(b) was the subject of an open I-card issued by the 23rd Precinct Detective Squad.

From the stationhouse, PO Procida accompanied § 87(2)(b) to Queens Central Booking. They arrived there at approximately 8:41 p.m. § 87(2)(b) was arraigned at approximately 11:00 p.m. He was released on his own recognizance with regards to his arrest for § 87(2)(b), but was kept in police custody due to his open I-card. § 87(2)(b) was escorted from the courtroom back to a holding cell by PO Procida and two unidentified officers from the Queens Court Section. Near the holding cell, the two Queens Court Section officers allegedly pushed § 87(2)(b) against a wall and then forced him to the ground (**Allegation D: Force: Physical force, officers unidentified**). One of the Court Section officers allegedly took a nearby flyswatter and held it across § 87(2)(b)’s neck, choking him (**Allegation E: Force – Chokehold, officer unidentified; Allegation F: Force – Restricted breathing, officer unidentified**). This officer then allegedly forced part of the flyswatter into § 87(2)(b)’s mouth (**Subsumed in Allegation E**).

§ 87(2)(b) was transported back to § 87(2)(b) at approximately 12:50 a.m. on September 17, 2017. § 87(2)(b) learned there that the 23rd Precinct Detective Squad had canceled his open I-card. § 87(2)(b) was released from custody while at the hospital.

§ 87(4-b), § 87(2)(g)

No video footage was found for this incident.

Findings and Recommendations

Allegation (A) Discourtesy: At the 113th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon his perceived sexual orientation.

§ 87(2)(b) was interviewed at the CCRB on October 2, 2017. Due to a scheduling conflict, § 87(2)(b) was only able to provide a partial statement. He later completed his statement via telephone on October 17, 2017 (See Board Review #01-02: § 87(2)(b)'s Statements). He alleged that after his arrest on September 15, 2017, he was held overnight in a holding cell at the 113th Precinct stationhouse. During this time, two other prisoners got into an argument with § 87(2)(b). § 87(2)(b) did not know their names, but stated that one of them stated that his astrological sign was Scorpio, and the other stated that his sign was Gemini. The investigation identified the prisoners as § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not state in his initial interview when this argument occurred. During his follow-up telephone statement, he stated that it occurred at approximately 11:00 a.m. on September 16, 2017. During this argument, a uniformed officer entered the room containing the holding cells. § 87(2)(b) stated that this officer was a bald Hispanic male. When asked to provide additional details about this officer's appearance, § 87(2)(b) stated that he could not do so. He explained that he generally does not pay attention to males. § 87(2)(b) and § 87(2)(b) told this officer that they would be willing to beat § 87(2)(b) up if the officer agreed to give them food and cigarettes. The officer replied, "If you hit this faggot, you know you're going to go to jail. There's cameras looking at y'all." As the officer spoke to § 87(2)(b) and § 87(2)(b), several other officers walked into the room. The officer who had called § 87(2)(b) a "faggot" stopped talking as soon as the other officers appeared. In his initial statement, § 87(2)(b) did not explain when this allegation occurred relative to the subsequent physical force allegation he made against the same officer. In his follow-up telephone statement, he alleged that the officer used physical force against him shortly after the other officers entered the room.

A review of the 113th Precinct's prisoner holding pen roster found that there were three other prisoners who were lodged in the stationhouse's holding cells on the morning of September 16, 2017: § 87(2)(b) and § 87(2)(b) (See Board Review #03: Prisoner Holding Pen Roster). The investigation was unable to reach § 87(2)(b) or § 87(2)(b) (See Board Review #04: Civilian Contact Attempts).

PO Stephen Keyes was interviewed at the CCRB on January 12, 2018. Sgt. Diego DeJesus and PO Angel Rolon were interviewed on January 22, 2018 (See Board Review #05-07: MOS Statements). PO Keyes is a white male, while Sgt. DeJesus and PO Rolon are Hispanic males. None of these officers are bald. All three officers were on duty at the 113th Precinct stationhouse on the morning of September 16, 2017. None of them had been involved in § 87(2)(b)'s initial arrest on the evening of September 15, 2017. Sgt. DeJesus and PO Keyes stated that they first became aware of § 87(2)(b)'s presence at the stationhouse when he started to shout and bang on the bars of his holding cell. They did not recall if any other prisoners were in the holding cell with him. They were not aware of § 87(2)(b) having interacted with any other officers prior to this

outburst. PO Rolon stated that he first became aware of § 87(2)(b) when PO Keyes approached him at the front desk and asked for his assistance in removing § 87(2)(b) to the hospital. None of the officers were aware of § 87(2)(b) arguing with any officers or civilians. They were not aware of any officer calling a prisoner a “faggot” or otherwise remarking upon a prisoner’s perceived sexual orientation. None of these officers were aware of any other officers speaking to § 87(2)(b) prior to his outburst and subsequent removal from the holding cell. None of the officers recalled the names of any other officers who might have interacted with § 87(2)(b) while he was at the stationhouse.

The 113th Precinct roll call showed that during tour 2 on September 16, 2017, Sgt. DeJesus worked as the desk officer, PO Keyes worked as the telephone switchboard operator, and PO Rolon was assigned to the stationhouse’s 124 room. No other officers were listed with stationhouse assignments during that tour. There were no officers assigned as holding cell attendants (See Board Review #08: Roll Call).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **officer unidentified**.

Allegation (B) Discourtesy: At the 113th Precinct stationhouse, an officer used physical force against § 87(2)(b)

§ 87(2)(b) stated in his interview that at an unspecified time after the officer called him a “faggot,” he asked the officer who had called him a “faggot” if he could be escorted to the restroom. The officer opened the holding cell door, allowing § 87(2)(b) to exit. § 87(2)(b) noted in this statement that § 87(2)(b) and § 87(2)(b) were present in the holding cell, as well as a female prisoner. The investigation identified the female prisoner as § 87(2)(b). § 87(2)(b) did not state how much time passed between the officer calling him a “faggot” and when he asked to go to the restroom. He stated that § 87(2)(b) and § 87(2)(b) were removed from the holding cell at some point. One of them was taken to the Detective Squad’s office, while the other was sent to Queens Central Booking. He did not indicate if this occurred before or after he asked to go to the restroom. In his follow-up telephone statement, § 87(2)(b) stated that rather than being removed from the holding cell in order to go to the restroom, he was asked to leave the cell along with § 87(2)(b) and § 87(2)(b) in order to participate in a lineup identification by the Detective Squad. He did not recall during this statement if § 87(2)(b) and § 87(2)(b) were still in the room when he exited his cell.

Once § 87(2)(b) was out of the cell, he told the officer that he admired his “bravado.” The officer responded by pushing § 87(2)(b) against the bars of the holding cell. The left side of § 87(2)(b)'s body made contact with the bars. A group of other officers then rushed into the room. The investigation identified three of these officers as Sgt. DeJesus, PO Keyes and PO Rolon. These officers placed § 87(2)(b) in handcuffs and moved him back into his cell. § 87(2)(b) did not recall these officers' actions in detail, but he denied that they used any additional force against him. § 87(2)(b) did not sustain any injuries as a result of being pushed, but stated that he felt pain in his back. After § 87(2)(b) was restrained, he asked PO Keyes to call him an ambulance. He did not specify during his interview why he wanted medical care. § 87(2)(b) was transported to § 87(2)(b), § 87(2)(b) § 87(2)(b)

Sgt. DeJesus and PO Keyes both stated that they were working by the stationhouse's front desk at the time of this allegation. The front desk is located between thirty to fifty feet away from the room containing the holding cell. There is a closed-circuit video feed installed at the front desk that shows the holding cells. Neither officer had had any interactions with § 87(2)(b) or any other prisoners on the morning of September 16, 2017. They were first alerted to § 87(2)(b)'s presence when § 87(2)(b) started to shout and bang on the bars of the cell. The officers looked at the video feed, which showed § 87(2)(b) kicking the bars of his cell. Neither officer knew what had prompted § 87(2)(b)'s outburst. Sgt. DeJesus stated that he, PO Keyes, PO Rolon and an unidentified fourth officer entered the holding cell area and told § 87(2)(b) to calm down. § 87(2)(b) ignored him. PO Keyes stated that several other officers, including Sgt. DeJesus, initially approached § 87(2)(b) and asked him to calm down. PO Keyes remained at the front desk for about ten to fifteen minutes, during which time § 87(2)(b) continued shouting and kicking. PO Keyes then walked over to the holding cell and joined the other officers. Sgt. DeJesus decided to have § 87(2)(b) removed to the hospital § 87(2)(b)

PO Rolon stated that he was working behind the front desk, where he assisted Sgt. DeJesus as the assistant desk officer. He was first alerted to § 87(2)(b)'s presence when PO Keyes approached him and asked for his assistance in removing § 87(2)(b) to the hospital. PO Rolon did not know why § 87(2)(b) needed to go to the hospital. He was not aware of § 87(2)(b) being injured or suffering from any other medical issues at the time. PO Rolon followed PO Keyes into the holding cell area, where there were several other officers present, including Sgt. DeJesus.

All three officers stated that they suspected that § 87(2)(b) was emotionally disturbed due to his seemingly unprompted outburst and his refusal to calm down when approached by officers. Sgt. DeJesus decided to have him removed to the hospital § 87(2)(b) None of the officers were aware of § 87(2)(b) having any other medical issues, including physical injuries, at the time. All three officers stated that they entered § 87(2)(b)'s holding cell and restrained him by pulling his arms behind his back. They denied using any other force. They denied that any officer pushed § 87(2)(b) against the bars of the cell. Sgt. DeJesus stated that § 87(2)(b) resisted by holding his arms stiff, while PO Keyes and PO Rolon stated that § 87(2)(b) pulled his arms away. PO Keyes stated that § 87(2)(b) swung his elbows towards the officers, but denied that § 87(2)(b) struck him or the other officers. PO Keyes and PO Rolon additionally stated that § 87(2)(b)

threatened to defecate in his hand and strike PO Keyes with his feces. Sgt. DeJesus made no mention of any such threat. § 87(2)(b) did not ultimately carry out this threat. After § 87(2)(b) was handcuffed, he was removed from the holding cell and transported to § 87(2)(b). None of the officers were aware of § 87(2)(b) sustaining any physical injuries.

PO Keyes prepared a medical treatment of prisoner report to document § 87(2)(b)'s removal to § 87(2)(b). The narrative states that § 87(2)(b) complained of pain in his arm and requested medical treatment from the 113th Precinct. No mention is made of § 87(2)(b) being emotionally disturbed (See Board Review #09: Medical Treatment of Prisoner Report). When asked about this report, Sgt. DeJesus, PO Keyes and PO Rolon all stated that they did not recall § 87(2)(b) complaining of pain in his arm or requesting medical attention.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g) He initially stated that the subject officer pushed him against the bars while escorting § 87(2)(b) to the restroom. He later stated that he was pushed while being escorted to a prisoner lineup alongside § 87(2)(b) and § 87(2)(b). § 87(2)(b) alleged in his sworn that he suffered pain in his back as a result of being pushed against the bars of the cell. § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B** be closed as **unfounded**.

Allegation (C) Discourtesy: In transit from § 87(2)(b) Police Officer William Schroder spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that he was escorted to § 87(2)(b) by PO Keyes. He was held there for several hours. During that time, PO Procida relieved PO Keyes as § 87(2)(b)'s escorting officer. § 87(2)(b) was discharged from the hospital at approximately 7:00 p.m. on September 16, 2017 and was returned to the 113th Precinct stationhouse. From there, he was transported along with several other prisoners to Queens Central Booking. PO Procida remained with § 87(2)(b) throughout this period. During his initial statement, § 87(2)(b) alleged that two uniformed officers, a white male and a South Asian male, transported him from the stationhouse to Queens Central Booking along with PO Procida and the other prisoners. The investigation identified these officers as PO Schroder and PO O'Brien respectively. During this time, PO Schroder shared a lewd anecdote from his personal life in which a woman showed her breasts to him after he promised her that he would vote for Barack Obama in the 2012 presidential election. During his follow-up telephone statement, § 87(2)(b) identified PO Schroder and PO O'Brien as the officers who transported him and PO Procida from the hospital to the stationhouse, rather than from the stationhouse to Queens Central Booking. He stated that PO Schroder shared his lewd anecdote en route to the stationhouse. No other prisoners were riding with him at the time of PO Schroder's remark.

PO Steven O'Brien was interviewed at the CCRB on March 8, 2018. PO William Schroder was interviewed at the CCRB on April 4, 2018 (See Board Review #12-13: MOS Statements). PO Schroder is a white male and PO O'Brien is a South Asian male. Neither officer recalled transporting § 87(2)(b) or PO Procida from the hospital to the stationhouse. Neither officer recalled interacting with § 87(2)(b). They did not recognize a photograph of § 87(2)(b). PO Schroder denied sharing any lewd anecdotes with other officers while in the presence of a prisoner. PO O'Brien did not recall PO Schroder doing so.

PO O'Brien's memo book entries indicate that he was instructed to speak to a complainant at § 87(2)(b) at some time between 3:35 p.m. and 5:30 p.m., but has no other entries pertaining to any hospital visits. PO Schroder's memo book entries did not have any entries related to this incident (See Board Review #14-15: Memo Books).

PO Michael Procida was interviewed at the CCRB on February 16, 2018 (See Board Review #15: PO Procida's Statement). He stated that § 87(2)(b) was discharged from the hospital at around 4:15 p.m. PO Procida requested a unit to pick them up at the hospital and return them to the stationhouse. Two officers picked PO Procida and § 87(2)(b) up and returned them to the stationhouse at approximately 7:00 p.m. He did not recall which officers transported them, or what unit they were assigned to. PO Procida did not recall what, if any, conversation he and the other officers might have had amongst themselves while transporting § 87(2)(b) to the stationhouse. He denied that any officers shared a lewd anecdote from their personal lives while in § 87(2)(b)'s presence at any time on September 16, 2017.

A review of the 113th Precinct roll call at the time of this allegation showed that PO Schroder and PO O'Brien were the only partnership of a white male and a South Asian male on duty (See Board Review #16: Roll Call).

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Force: At Queens Central Booking, officers used physical force against

§ 87(2)(b)

Allegation (E) Force: At Queens Central Booking, an officer used a chokehold against

§ 87(2)(b)

Allegation (F) Force: At Queens Central Booking, an officer restricted § 87(2)(b)'s breathing.

It is undisputed that § 87(2)(b) was transported to Queens Central Booking on the evening of September 16, 2017. Due to his hospitalization earlier in the day, § 87(2)(b) was treated as a "walk-through" and was expedited through Queens Central Booking's intake process. He was escorted throughout his visit by PO Procida. § 87(2)(b) was arraigned in a courtroom at Queens Central Booking at approximately 11:00 p.m. He was released on his own recognizance with regards to his arrest for § 87(2)(b). Because he was the subject of an open I-card, however, § 87(2)(b) was kept in custody at a holding cell. § 87(2)(b) was involved in a physical altercation with several police officers while he was moved from the courtroom to the holding cell. § 87(2)(b) was taken back to § 87(2)(b) after this altercation. Before he was taken to the hospital, it was discovered that § 87(2)(b)'s I-card had been canceled. As a result, § 87(2)(b) was released from police custody once he arrived at the hospital.

§ 87(2)(b) stated that two unidentified uniformed officers escorted § 87(2)(b) out of the courtroom and into a holding cell. § 87(2)(b) was unable to describe the two officers in detail, stating only that one was a black male and one was a Hispanic male. § 87(2)(b) initially stated

that these officers were police officers, but then later described them as “COs” who were not employed by the NYPD. When asked to clarify who these officers were, § 87(2)(b) stated that the officers were not corrections officers, but were still employees of the NYC Department of Corrections. He did not believe that they were police officers because he overheard the Hispanic male officer say that he used to be a police officer, but was suspended from the NYPD after a domestic incident. The investigation later determined that these escorting officers were NYPD officers assigned to the Queens Court Section. PO Procida and the two Court Section officers escorted § 87(2)(b) into a room containing a holding cell. § 87(2)(b) was in handcuffs at the time. Another Court Section officer, PO Summer Powell, was sitting behind a desk there. There were also two black male EMTs stationed in the room. There were no other prisoners in the room. Once the two escorting Court Section officers placed § 87(2)(b) into the cell, the Hispanic Court Section officer pushed him face-first against the bars of the cell. The black Court Section officer then pulled § 87(2)(b)'s legs out from underneath him, causing § 87(2)(b) to fall to the floor. PO Procida knelt down and assisted the Court Section officers by holding § 87(2)(b)'s legs down. The Hispanic Court Section officer produced a flyswatter. He held the flyswatter lengthwise across § 87(2)(b)'s neck, choking him. He then forced the flat end of the flyswatter into § 87(2)(b)'s mouth. This action caused lacerations to § 87(2)(b)'s gums. The officers then applied a “muzzle” around § 87(2)(b)'s mouth. After this struggle, the EMTs stationed in the room transported § 87(2)(b) back to § 87(2)(b). § 87(2)(b) was released from custody at the hospital after it was learned that his I-card had been cancelled. § 87(2)(b) left the hospital on his own before he received any treatment there.

On March 13, 2018, an IAB request made to the Queens Court Section asking to identify the EMTs who were present at the time of these allegations was returned, stating that they do not have records regarding the EMTs. On March 25, 2018, a subpoena was mailed to the FDNY asking to identify any EMTs who were on duty at Queens Central Booking at the time of these allegations. On April 3, 2018, a representative of the FDNY Court Desk stated that no FDNY EMTs were on duty there at the time. Their records indicated that EMTs from “§ 87(2)(b)” were assigned to Queens Central Booking at the time. The only hospital with a name resembling “§ 87(2)(b)” is § 87(2)(b), which is part of the § 87(2)(b) hospital network. On April 20, 2018, a representative of the § 87(2)(b)'s EMS service stated that while EMTs from his service sometimes respond to calls at Queens Central Booking, they are never permanently assigned there. He did not know of any EMS services besides the FDNY who work at Queens Central Booking. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

PO Procida stated that after § 87(2)(b)'s arraignment, he was moved from the courtroom to a holding cell by two NYPD officers. These officers were assigned to the Queens Court Section. He denied that these escorting officers were correction officers. PO Procida followed these officers to the holding cell. PO Procida did not know who these officers were. The officers were holding § 87(2)(b) by his arms. As they walked down a hallway between the courtroom and the holding cells, § 87(2)(b) started shouting at the officers and threatening to kill them. He also attempted unsuccessfully to kick PO Procida and the Court Section officers. When § 87(2)(b) reached the holding cell, he refused to enter it. The officers tried to walk § 87(2)(b) inside, but he resisted by placing both of his feet against the bars of the cell and pushing back. The Court

Section officers were assisted by several other unidentified officers who were in the room. PO Procida did not know who they were. He did not know if they were also from the Court Section, as officers from various commands throughout the borough come through Queens Central Booking to deposit prisoners. § 87(2)(b) spat at the officers around him. PO Procida did not recall if the saliva made contact with anybody. The officers overcame § 87(2)(b)'s resistance by forcibly pushing him into the cell. Once inside, § 87(2)(b) continued to kick and spit at the officers. § 87(2)(b) lost his balance while doing so and fell to the floor, landing on his side. The officers then released § 87(2)(b), exited the cell, and closed it behind them. § 87(2)(b) continued trying to spit at the officers from inside of the cell. He also urinated on the floor of the cell. The officers responded by placing a plastic riot shield in front of the cell to block § 87(2)(b)'s saliva. PO Procida denied that any other force was used to subdue § 87(2)(b) beyond pushing him into the holding cell. He denied that any officers forced § 87(2)(b) to the ground or pushed him against the bars of the cell. He denied that any officer choked § 87(2)(b) with a flyswatter or by any other means. He denied that any officer made contact with § 87(2)(b)'s neck, or that any officer forced a flyswatter or any other object into § 87(2)(b)'s mouth. He was not aware of § 87(2)(b) or any officers sustaining physical injuries. A few minutes later, § 87(2)(b) asked PO Procida for medical attention. § 87(2)(b) did not explain why he made this request. PO Procida relayed this request to the Queens Court Section's desk officer, Sgt. Annie Velez, who called for an ambulance. The ambulance transported § 87(2)(b) to § 87(2)(b). PO Procida escorted § 87(2)(b) to the hospital, but released him from custody when they arrived. PO Procida did not know what, if any, treatment § 87(2)(b) received at the hospital.

According to the Queens Court Section roll call, PO Paul Pinsdorf, PO Michael DeMarco and PO Makinston Courtois were assigned to the arraignment courtroom during tour 3 on September 16, 2017. PO Pinsdorf was assigned to the "movement" post within the courtroom. PO Summer Powell, a black female, was assigned to monitor the intake holding cells. Sgt. Annie Velez was assigned as the desk officer covering tour 1 on September 17, 2018 (See Board Review #17: Roll Call).

PO Powell was interviewed at the CCRB on March 23, 2018. PO Courtois was interviewed on April 16, 2018. PO Pinsdorf was interviewed on May 10, 2018. PO DeMarco was interviewed on May 18, 2018 (See Board Review #18-21: MOS Statements). PO Pinsdorf and PO DeMarco are white males, while PO Courtois is a black male. None of them recalled this incident. They did not recognize § 87(2)(b)'s name or photograph. They acknowledged that prisoners are sometimes held after their arraignment due to open I-cards. These prisoners are escorted from the courtroom to the "intake" holding cell where prisoners are initially received. These prisoners would have been escorted and watched by NYPD officers rather than correction officers. None of these officers specifically recalled any prisoners being kept in custody in this manner on September 17, 2017. They did not recall any prisoners getting into any physical altercations with any officers. All four officers denied using a flyswatter or any other object to choke a prisoner, and they denied placing a flyswatter or any other object into a prisoner's mouth. They denied pushing any prisoners or forcing any prisoners to the ground. They were not aware of any prisoners being hospitalized or sustaining any injuries. None of the officers knew the names of the EMTs assigned to Queens Central Booking at the time.

PO Pinsdorf, PO DeMarco and PO Courtois confirmed that they were assigned to posts in the arraignment courtroom. One of the three posts, the “movement” post, is generally responsible for moving prisoners. While PO Courtois was listed on the roll call as being assigned to the movement post, all three officers stated that they freely switch posts among themselves, and that PO Courtois might not have been covering that post at the time of the incident. They also noted that prisoners are frequently escorted around Queens Central Booking by whatever officers are on hand at a given time, rather than officers assigned to particular posts.

Sgt. Velez prepared an entry in the Queens Court Section command log at 12:50 a.m. on September 17, 2017. The entry stated that § 87(2)(b) was removed to the hospital § 87(2)(b). It identifies the hospital that he went to as § 87(2)(b), rather than § 87(2)(b). The entry does not mention any physical struggles or altercations involving § 87(2)(b). It identifies PO Procida as § 87(2)(b)'s escorting officer, but does not identify any Queens Court Section officers who interacted with § 87(2)(b) (See Board Review #22: Command Log). On April 20, 2018, a search for Sgt. Velez's employment status found that she retired from the NYPD on October 20, 2017 (See Board Review #23: Employment Status). As such, Sgt. Velez was not interviewed.

§ 87(2)(a) PHL § 18(6)

[REDACTED]

§ 87(2)(a) PHL § 18(6)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(b) was unable to describe the officers in detail, stating only that one was a Hispanic male and that the other was a black male. He did not learn the names of these officers either.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Neither PO Procida nor any of the Queens Court Section officers knew the identities of the officers who escorted § 87(2)(b) from the courtroom to the intake cells. PO Pinsdorf and PO DeMarco are both white males. PO Courtois is a black male. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E and F** be closed as **officer(s) unidentified**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two previous CCRB complaints and has been named as a victim in thirteen allegations (Board Review #25: Civilian CCRB History).
 - § 87(2)(b)
 -
- PO Schroder has been a member of the service for four years and has been the subject of one previous CCRB complaint and one previous allegation. It was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A Notice of Claim request was submitted to the NYC Office of the Comptroller on June 1, 2018. It will be included in the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date